

Framework Agreement Zephyr-7

Framework agreement on the supply and maintenance of the Zephyr-7 product

between Meridian Systems Ltd., 12 Harbour Road, London EC3R 6AF, hereinafter the "Supplier", and the contracting party named in the order form, hereinafter the "Customer".

Section 1 Subject matter

The Supplier provides the Customer with the Zephyr-7 product in the configuration ordered and performs the maintenance set out in Section 6. Technical data are specified in Annex 1. Deviations that do not materially impair function remain reserved.

Section 2 Term and termination

The agreement starts on the delivery date and runs for twelve months. It renews for further periods of twelve months unless it is terminated. The notice period is four weeks to the end of a month. Receipt by the Supplier is decisive for meeting the deadline.

The right of either party to terminate for good cause remains unaffected.

Section 3 Prices and payment terms

The price list in force at the time of the order applies. Invoices fall due for payment within 30 days without deduction.

Liability for defects and warranty

Section 4 Liability for defects

The Supplier warrants that the product has the agreed quality at the passing of risk. Obvious defects must be reported in writing within two weeks of delivery.

Section 5 Warranty

The warranty on Zephyr-7 runs for 24 months from the delivery date. It covers repair free of charge or the replacement of parts that are shown to have failed because of a material or manufacturing defect.

The warranty does not cover:

- a) wear parts as listed in Annex 2,
- b) damage caused by improper operation or work by third parties,
- c) damage caused by operation outside the specified conditions.

Work carried out under warranty does not extend the warranty period. Replaced parts are covered for the remainder of the original period.

Section 6 Maintenance

The Supplier carries out one inspection per year. The date is agreed at least four weeks in advance. Response times for fault reports depend on the service level booked and are eight working hours as standard.

Special terms for existing customers

Section 15 Special terms

Section 15a Existing customers

A customer counts as an existing customer if it entered into a framework agreement with the Supplier before 1 January 2024 and has kept it in force without interruption.

For existing customers the warranty period under Section 5 is extended from 24 to 36 months. The exclusions under Section 5 paragraph 3 remain unaffected.

Decisions on goodwill in these cases rest with the legal department of the Supplier. A rejection must state the reasons.

Section 15b Transfer on a change of shareholders

Existing customer status survives a change of shareholders as long as the company name continues.

Section 16 Final provisions

Amendments and additions must be made in writing. The same applies to any waiver of this requirement of form. Should a provision be invalid, the remainder of the agreement stays in force.

The place of jurisdiction is London where the Customer is a merchant.